

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	09-07-2026 15:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	09-07-2026 15:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम/Department Name	Indian Oil Corporation Limited
संगठन का नाम/Organisation Name	Indian Oil Corporation Limited
कार्यालय का नाम/Office Name	Panipat Refinery
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :sahuhr@indianoil.in Buyer Email id: pathaks2@indianoil.in
कुल मात्रा/Total Quantity	24
वस्तु श्रेणी /Item Category	SCHEDULE - 1 - 8134241944 - TANKRADAR GAUGE WITH PARABOLIC ANTENNA , SCHEDULE - 2 - Supervision for INSTALLATION AND COMMISSIONING of item 10 , SCHEDULE - 3 - 8134928604 - NON CONTACT RADAR , SCHEDULE - 4 - 8134642482 - LVL INS NONCON RADAR , SCHEDULE - 5 - 8126610904 - GUIDED WAVE RADAR
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	PRMM267004 - SCHEDULE - 1 - 8134241944 - TANKRADAR GAUGE WITH PARABOLIC ANTENNA AND INSTALLATION AND COMMISSIONING
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Category not available on GeM for the text string uploaded by the buyer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- Level Transmitter Radar Type - Sports Radar Gun (V2)
बीओक्यू शीर्षक /BOQ Title	PRMM267004
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC),Additional Doc 4 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	SCHEDULE - 1 - 8134241944 - TANKRADAR GAUGE WITH PARABOLIC ANTENNA
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	4 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Group wise evaluation
मध्यस्थता खंड/Arbitration Clause	Yes (Arbitration clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 Arbitration should not be routinely included in contracts
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	17

(a).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

DEPUTY GENERAL MANAGER MATERIALS

Panipat Refinery, INDIAN OIL CORPORATION LIMITED, INDIAN OIL Corporation Limited, Ministry of Petroleum and Natural Gas (GROUP - R07)
(Indian Oil Corporation Limited)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमआईआई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MII

सक्षम प्राधिकारी का नाम/Name of Competent Authority	Ministry of Petroleum and Natural Gas
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	Deputy Secretary to the Government of India, Ministry of Petroleum and Natural Gas
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	Ministry of Petroleum and Natural Gas
सीए अनुमोदन संख्या/CA Approval Number	FP-20013/2/2017-FP-PNG
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	25-06-2026
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority	The Purchase Preference (linked with Local Content) policy of MOPNG is not applicable for tenders less than Rs. 1 cr.

Competent Authority Approval for not opting Make In India Preference : [View Document](#)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
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सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% / Purchase Preference to MSE OEMs/ Service Provider available upto price within L1+X%	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

Evaluation Method (Group Wise Evaluation Method)

Contract will be awarded schedulewise and the determination of L1 will be done separately for each schedule. The details of item-consignee combination covered under each schedule are as under:

Evaluation Schedules	Item/Category	Consignee/Reporting Officer	Consignee Address	Quantity
Schedule 1	Schedule - 1 - 8134241944 - Tankradar Gauge With Parabolic Antenna	Satbir Singh	MATERIALS DEPTT , PANIPAT REFINERY PANIPAT 132140	8

	Schedule - 2 - Supervision For Installation And Commissioning Of Item 10	Satbir Singh	MATERIALS DEPTT , PANIPAT REFINERY PANIPAT 132140	8
Schedule 2	Schedule - 3 - 8134928604 - Non Contact Radar	Satbir Singh	MATERIALS DEPTT , PANIPAT REFINERY PANIPAT 132140	2
Schedule 3	Schedule - 4 - 8134642482 - Lvl Ins Noncon Radar	Satbir Singh	MATERIALS DEPTT , PANIPAT REFINERY PANIPAT 132140	2
Schedule 4	Schedule - 5 - 8126610904 - Guided Wave Radar	Satbir Singh	MATERIALS DEPTT , PANIPAT REFINERY PANIPAT 132140	4

SCHEDULE - 1 - 8134241944 - TANKRADAR GAUGE WITH PARABOLIC ANTENNA

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Satbir Singh	132140,MATERIALS DEPTT , PANIPAT REFINERY PANIPAT	8	90

SCHEDULE - 2 - Supervision For INSTALLATION AND COMMISSIONING Of Item 10

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Satbir Singh	132140,MATERIALS DEPTT , PANIPAT REFINERY PANIPAT	8	120

SCHEDULE - 3 - 8134928604 - NON CONTACT RADAR

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Satbir Singh	132140,MATERIALS DEPTT , PANIPAT REFINERY PANIPAT	2	90

SCHEDULE - 4 - 8134642482 - LVL INS NONCON RADAR

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Satbir Singh	132140,MATERIALS DEPTT , PANIPAT REFINERY PANIPAT	2	90

SCHEDULE - 5 - 8126610904 - GUIDED WAVE RADAR

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Satbir Singh	132140,MATERIALS DEPTT , PANIPAT REFINERY PANIPAT	4	90

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3. Generic

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- a. Copy of PAN Card.
- b. Copy of GSTIN.
- c. Copy of Cancelled Cheque.
- d. Copy of EFT Mandate duly certified by Bank.

4. **Generic**

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

5. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

6. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

1. **PRE-QUALIFICATION CRITERIA:**

(A) **TECHNICAL CRITERIA:** **Not Applicable:** -

(B) **COMMERCIAL CRITERIA:** **Applicable as per Below.**

1. **FINANCIAL CRITERIA (Annual Turn Over):** **Not Applicable**

2. **COMMERCIAL EXPERIENCE CRITERIA:** **Applicable as below**

The order(s) executed by the bidder, during the last five years ending on the last day of the month immediately preceding the month in which the **in which the original bid submission end date falls**, should be considered as under:

- i. **Three orders** each executed for *Similar Item where executed value is not less than the amount equal to **INR 15,71,000/-**
OR
- ii. **Two orders** each executed for *Similar Item where executed value is not less than the amount equal to **INR 20,95,000/-**
OR
- iii. **One order** executed for *Similar Item where executed value is not less than the amount equal to **INR 26,18,000/-**

*** Similar Item: "Supply of Radar Gauges"**

NOTE: -

- i. Order price including all charges like P&F charges, TPI Charges, taxes duties and other costs , if any shall be considered for arriving at the executed order value.

- ii. Last date of order execution shall fall in the above mentioned period i.e. within last five years ending on the last day of the month immediately preceding the month in which the original bid submission end date falls.
- iii. Foreign orders in currency other than USD shall be converted to USD on the date of the said Purchase Order (Global Tenders). Orders in currency other than INR shall be converted to INR on the date of the said Purchase Order.
- iv. Multiple GeM contracts on same vendor against single GeM bid can be clubbed as single order for the purpose of meeting value against commercial pre-qualification criteria.
- v. **For fulfilling the commercial experience criteria any one of the following documents may be considered as valid proof for meeting the criteria:**
 - a) Purchase Order along with Invoice(s) {with self-certification that supplies against invoice has been successfully executed}. Uploading the invoice(s) on the e-portal is considered as self-certification by the bidder that supplies against the invoices have been successfully executed to the required value.
 - b) Purchase Order along with Bank Certificate indicating payment against the PO.
 - c) Purchase Order along with Execution certificate by client indicating executed order value. In case the execution certificate does not mention the executed value, the bidder shall have to submit other documents as mentioned here indicating executed value.
 - d) In case vendor cites any reference of job executed for IOCL, internal records of IOCL shall be considered.
 - e) In case multiple orders have been placed against a single rate contract and the cumulative order value satisfies the PQC, it may also be considered, subject to submission of other documents as mentioned above. Multiple GeM contracts against one GeM bid on a particular vendor is to be considered as a single PO for PQC evaluation.
 - f) In case any other document is submitted by the bidder in support of execution, the same shall be properly checked by the concerned officers before acceptance.

Please note following details w.r.t . GEM order and processing of payment:

Plant Code	GST to be mention in invoice	Delivery Address
9060	06AAACI1681G1ZT	Mr. Satbir Singh, MTM (Stores) Indian Oil Corporation Ltd. Panipat Refinery Panipat. 132 140 , Haryana, India

In order to release the payment in time and avoid demurrage please ensure to send the Following (Photo/Scanned copy to Mr. Satbir Singh, MTM (Stores), gautams2@indianoil.in (For 9060) Mr. Saurabh Pathak, MTM, 0180-252-4397, pathaks2@indianoil.in

- (i) Dispatch documents must contain all documents as per order viz.
 - (a) Original Commercial Invoice.
 - (b) Challan with GST.
 - (c) Consignee copy of consignment.
 - (d) Packing list of the consignment.
- (ii) One set of dispatch document must be sent to the following address within 7 days of dispatch:
h:

Contact Person for delivery / unloading / Inspection / Acceptance of Materials:

Issues related to Unloading/Inspection/Acceptance of Materials:

CONTACT PERSON(S):

"Sh. Satbir Singh, Materials Manager (Stores), 0180-2522387, gautams2@indianoil.in (Stores)
for 9060

Issues related to Payment:

CONTACT PERSON(S):

"Concerned Finance officer:

Mr. Praveen Kumar , Senior Accounts officer (Finance), 0180-252-2088 , kumarpaveen3@indianoil.in

" Mr. Sachin Goyal, CFM(F), 0180- 252-2097, goyals@indianoil.in

For all matters:

CONTACT PERSON(S):

"Concerned Purchase officer details:

Mr. Saurabh Pathak, MTM, 0180-252-4397, pathaks2@indianoil.in

SECTION INCHARGE:

" Mr. Ravi Kant Verma, Senior Materials Manager, Contact no.: 0180 252 2390, Email: vermaravik@indianoil.in

" Mr. Chilkapati Sunil Kumar, Chief Materials Manager, Contact no.: 0180 252 2382, Email: kumararsunil5@indianoil.in

Tender Inviting Authoring:

"Sh. Hiraram Sahu, DGM(MT), 0180-2578775, 0180-252-2381 sahuhr@indianoil.in

Note:

*** Your vehicle / representative should reach the material entry section (PTA /Sulphur Gate) before**

12.00 Noon on working day for unloading on the same day.

For Entry in Refinery Premises, Vehicle should be fitted with Spark Arrestor, Fire Extinguisher. Drivers and Cleaner should wear Shoes and Safety Helmets.

*** CNG / Two Stroke engine Vehicles are not allowed to enter the refinery premises, hence, sends the material in Non-CNG / Non-Two Stroke Engine Vehicles.**

USEFUL INFORMATION FOR VENDORS:

IOCL has introduced VIM for payment, you are requested to please visit <https://apps.indianoil.in/vim> and register yourself and can upload digitally signed invoices there.

For VIM related payments, Please enquire through Chatbot or 9 to 5 helpline.

Vendor will get the payment details by using chatbot.

Please use chatbot and get the details of each invoice for accounting purpose.

Email	VIMHelpdesk@indianoil.in
Chatbot	www.gs.im/in/62ab1e374af1d
Helpdesk Phone	+91 120 6730555

Please use VIM dashboard to get the payment details.

NOTE:-

- ARBITRATION CLAUSE:-** "Notwithstanding anything to the contrary contained in Contract, it is agreed that any dispute between the Buyer and Seller shall be resolved through arbitration by a sole arbitrator to be appointed mutually by the Buyer and Seller only if the cumulative val

ue of claims of Buyer and the claims of Seller does not exceed Rs. 10 Crore. It is further agreed that in case the cumulative value of claims of the Buyer (inclusive of interest amount claimed by Buyer till the date of filing of statement of claim or the counter-claim as the case may be) filed before Arbitrator and the claims (inclusive of interest amount claimed by Seller till the date of filing of statement of claim or the counter-claim as the case may be) filed before the Arbitrator exceed Rs. 10 Crore, the Arbitrator so appointed shall refrain from proceeding in the arbitration and the proceedings shall stand terminated forthwith."

2. MSE RELATED CLAUSES FOR ZERO DEFECT ZERO EFFECT (ZED) :

"The Government of India envisioned the Zero Defect Zero Effect (ZED) initiative (Bronze /Silver / Gold level) and the Lean Certification initiative (Basic/Intermediate/Advanced level) to enhance MSME competitiveness, ensure sustainability, and transform them into national and international champions.

For complete details on registration, required documents, benefits, and other related information, visit the links below :

<https://zed.msme.gov.in/>

and the link below.

<https://lean.msme.gov.in/>

Kindly register and take advantage of these GOI initiatives."

Note :-

For Schedule - 2 Supervision for Installation and Commissioning of Item 10 : -

01. IOCL shall carry out installation of radar gauges and peripherals as per OEM supplied manuals.
02. Vendor to supervise instrument power up after installation and its commissioning with existing TFMS.
03. The Time of completion for installation and commissioning for vendor shall be 30 days from the date of site hand over.

Important Note:-

Insurance Surety Bond (ISB) format is attached in "Buyer Added Bid Specific AT C".

NOTE:-

Detailed "Commercial Requirement" is uploaded as ATC document in "Buyer Added Bid Specific ATC".

7. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---